

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

===== X

CLIFF NIEVES and STEVEN NIEVES,

Plaintiffs,

-against-

CITY OF NEW YORK; Sergeant JEREMY
ORENSTEIN; Detective KEVIN NOTO;
Detective MANUEL PEREZ; Detective
ERICKSON PERALTA; Detective ANNY
MENDEZ; Sergeant ARNOLDO MARTINEZ;
Sergeant CARLOS ROSAL; Sergeant KAMIL
CHOINSKI; Captain LARRY D. CHAMBERS;
Detective RALPH JEAN PIERRE; Former
Dep. Commissioner JOSEPH J. REZNICK;
Former Commissioner JAMES O'NEILL; and
JOHN and JANE DOE 1-10,

Defendants.

===== X

To the above-named Defendants:

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as place of venue

The basis of the venue is:
Situs of the Occurrence

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

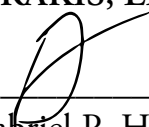
Dated: May 19, 2023

New York, New York

The nature of this action is, *inter alia*, civil rights violations, malicious prosecution, fabrication of evidence, defamation and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: 

Gabriel P. Harvis, Esq.

Baree N. Fett, Esq.

Attorneys for the Plaintiffs

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:

City of New York

100 Church Street

New York, New York 10007

Sergeant Jeremy Orenstein

Internal Affairs Bureau, Group 25

315 Hudson Street

New York, New York 10014

Detective Kevin Noto

Technical Assistance and Response
Unit

Bldg. 610

Fort Totten, New York 11359

Detective Manuel Perez

1 Police Plaza

New York, New York 10038

Detective Erickson Peralta

Uniformed Promotions Training Unit

1 Police Plaza

New York, New York 10038

Detective Anny Mendez

1 Police Plaza

New York, New York 10038

Sergeant Arnoldo Martinez

Midtown North Precinct

306 W. 54th Street

New York, New York 10019

Sergeant Carlos Rosal

1 Police Plaza

New York, New York 10038

Sergeant Kamil Choinski
Transit Bureau District 2
283 W. Broadway
New York, New York 10013

Captain Larry D. Chambers
1 Police Plaza
New York, New York 10038

Detective Ralph Jean Pierre
1 Police Plaza
New York, New York 10038

**Former Dep. Comm. Joseph J.
Reznick**
1 Police Plaza
New York, New York 10038

Former Comm. James O'Neill
1 Police Plaza
New York, New York 10038

**Failure to respond will result in a judgment against you by default and interest from
May 24, 2022.**

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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CLIFF NIEVES and STEVEN NIEVES,

Plaintiffs,

-against-

CITY OF NEW YORK; Sergeant JEREMY
ORENSTEIN; Detective KEVIN NOTO;
Detective MANUEL PEREZ; Detective
ERICKSON PERALTA; Detective ANNY
MENDEZ; Sergeant ARNOLDO MARTINEZ;
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CHOINSKI; Captain LARRY D. CHAMBERS;
Detective RALPH JEAN PIERRE; Former
Dep. Commissioner JOSEPH J. REZNICK;
Former Commissioner JAMES O'NEILL; and
JOHN and JANE DOE 1-10,

Defendants.

===== X

Plaintiffs CLIFF NIEVES and STEVEN NIEVES, by their attorneys,
ELEFTERAKIS, ELEFTERAKIS & PANEK, as and for their Verified Complaint,
respectfully allege, upon information and belief:

JURISDICTION AND VENUE

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules
apply to this action.

Index No.:

Date Purchased:

**VERIFIED
COMPLAINT**

2. This action is brought pursuant to the laws of the City and State of New York and 42 U.S.C. §§ 1983 and 1988.

3. Jurisdiction is conferred by the laws of the State of New York.

4. Within ninety (90) days after the claim arose, plaintiffs served, presented, and duly filed Notices of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. The nature of the claims;
- b. The time when, place where, and manner in which the claim arose;
and
- c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiffs' claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiffs on October 7, 2022.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

JURY DEMAND

8. Plaintiffs demand a trial by jury in this action.

PARTIES

9. Plaintiffs Cliff Nieves and Steven Nieves are residents of the State of New York.

10. Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State and City of New York.

11. The individual defendants were, at all relevant times, employees of the NYPD. In their interactions with plaintiffs these defendants were acting in the capacity of agent, servant and employee of the defendant City of New York and acted within the scope of their employment and under color of state law. These defendants are sued in their individual capacities and as employees of defendant City.

12. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiffs of their rights and injured them. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City.

13. At all times relevant herein, all individual defendants were acting under color of state law and in the scope of their employment.

STATEMENT OF FACTS

14. Plaintiffs Cliff and Steven Nieves, brothers and NYPD officers (off-duty at the time) planned a bachelor party for their cousin to take place on June 17, 2017, at 206 42nd Street in Brooklyn, New York.

15. At no time did plaintiffs engage in any illegal conduct during the planning or hosting of this event.

16. The bachelor party was held without incident.

17. Over a year later, or about September 12, 2018, Cliff Nieves, then a decorated NYPD Sergeant with no disciplinary history, suffered the indignity of being arrested in his home in front of his wife and daughter by fellow NYPD officers.

18. On that same day, Steven Nieves underwent a similar ordeal when he was arrested in front of plaintiffs' father, who was left in tears as his son was taken away in handcuffs.

19. Plaintiffs were taken to the Queens County District Attorney's office and placed in a cell without being told the reason for their arrests.

20. Unbeknownst to plaintiffs, they had been indicted on false charges of promoting prostitution and conspiracy.

21. Defendants procured the indictments in bad faith by intentionally misrepresenting the June 2017 bachelor party and the conversations involved in its planning to prosecutors, grand jurors and judges as coded language for hiring prostitutes.

22. But, as defendants were aware, everything about the planning and execution of the bachelor party underscored its innocence and no reasonable officer, let alone the high-ranking officials involved in the sprawling investigation, would ever believe there was probable cause for the charges filed.

23. Defendants, including defendant Orenstein, also provided false information in support of a warrant used to surreptitiously record the bachelor party.

24. Nothing on the recordings or elsewhere in the investigation revealed or suggested criminality on the part of the plaintiffs or evidence to support the charges filed or the information and testimony the defendants provided to prosecutors and the Court.

25. Prior to the events described herein, plaintiffs each had exemplary records as NYPD officers; plaintiff Cliff Nieves was on track to become a lieutenant and Steven Nieves was working toward making sergeant.

26. The news of plaintiffs' arrests was widely covered in the media, with plaintiffs' family, friends and neighbors being approached by reporters asking questions about plaintiffs' alleged involvement in a prostitution ring conspiracy.¹

27. Plaintiffs were immediately suspended without pay and ordered to surrender their firearms and officer identifications.

¹ See Wilson, Michael, Schweber, Nate and Southall, Ashley, N.Y. Times, *Brothels, Gambling and an Ex-Detective Mastermind: Officials Detail N.Y. Police Scandal*, September 13, 2018 (accessible at: <https://www.nytimes.com/2018/09/13/nyregion/nypd-officers-arrested-prostitution-gambling.html?smid=url-share>); see also abc7NY, *DA: Ex-detective ran Brooklyn, Queens prostitution ring in which 7 NYPD officers charged*, September 13, 2018 (Then-NYPD Commissioner James O'Neill described officers allegedly involved in the prostitution ring as having, "... ruined their own careers and reputations..." The article went on to identify plaintiffs by their names, ranks and current assignments.) (accessible at: <https://abc7ny.com/nypd-police-officers-arrested-new-york-city-brooklyn/4224928/>)

28. Thereafter, plaintiffs were assigned, for approximately 16 months, to appear for duty at an Internal Affairs office, where they sat prohibited from engaging in police activities, uncertain as to their fate as police officers and free citizens.

29. Plaintiffs were criminally prosecuted for over three and a half years before they were acquitted of all charges on May 24, 2022, following a two-week bench trial.

30. Plaintiffs were not restored to “full duty” until approximately four years after their arrests, all while opportunities for professional growth and overtime were thwarted and ultimately hindered.

31. By reason of the foregoing, plaintiffs suffered damage as a result of defendants’ actions. Plaintiffs suffered, *inter alia*, pain and suffering, emotional distress, mental anguish, anxiety, embarrassment, humiliation, damage to their reputations, lost wages and lost future earnings.

FIRST CLAIM

State Law Malicious Prosecution

32. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, defendants are liable to plaintiffs for having committed malicious prosecution under the laws of the State of New York.

34. Defendants maliciously commenced criminal proceedings against plaintiffs, charging them with *inter alia* promoting prostitution. Defendants falsely and without probable cause charged plaintiffs with violations of the laws of the State of New York.

35. The commencement and continuation of the criminal proceedings against plaintiffs was malicious and without probable cause.

36. All charges were terminated in plaintiffs' favor.

37. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiffs. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under New York State law pursuant to the doctrine of *respondeat superior*.

38. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages herein before alleged.

SECOND CLAIM
§ 1983 Malicious Prosecution

39. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

40. By their conduct as described herein the individual defendants are liable to plaintiffs for maliciously prosecuting them.

41. Defendants initiated and continued the prosecution of plaintiffs in the absence of probable cause and with actual malice.

42. The criminal charges against plaintiffs were favorably terminated.

43. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under New York State law pursuant to the doctrine of *respondeat superior*.

44. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiffs suffered the damages alleged herein.

THIRD CLAIM

Denial of Constitutional Right to Fair Trial

45. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

46. The individual defendants created false evidence against plaintiffs.

47. The individual defendants forwarded false evidence to prosecutors of the Queens County District Attorney's Office.

48. In creating false evidence against plaintiffs, and in forwarding false information to prosecutors, the individual defendants violated plaintiffs' right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

49. As a direct and proximate result of this unlawful conduct, plaintiffs suffered the damages alleged herein.

FOURTH CLAIM

Negligence; Negligent Hiring/Training/Retention

50. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

51. Defendant City, through the NYPD, owed a duty of care to plaintiffs to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiffs or to those in a like situation would probably result from the foregoing conduct.

52. Defendants conducted a negligent investigation and failed to investigate evidence of plaintiffs' innocence.

53. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

54. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

55. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiffs' injuries.

56. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

FIFTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

57. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

58. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiffs.

59. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

60. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiffs. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

61. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

SIXTH CLAIM
Failure to Intervene

62. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

63. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

64. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

65. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CLAIM
Defamation

66. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

67. By their conduct, as described herein, defendants are liable to plaintiffs for having committed defamation under the laws of the State of New York.

68. Defendants made false, disparaging and public statements about plaintiffs, including but not limited to casting plaintiffs as criminals who betrayed their oaths of office to engage in conduct involving moral turpitude.

69. Defendants conduct in making such false, disparaging and public statements was intentional or at the very least negligent.

70. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged, including but not limited to damage and dishonor to their reputations, both personal and professional, brought about criticism, scorn, and ridicule of plaintiffs, as well as causing extreme emotional distress.

EIGHTH CLAIM
Violation of *Franks v. Delaware*

71. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

72. Defendants, including Orenstein, knowingly and intentionally, or with reckless disregard for the truth, made false statements in a warrant affidavit in violation of the Fourth Amendment.

73. The false statements made by defendants and contained in a warrant affidavit were necessary to the finding of probable cause underlying defendants'

unlawful arrest and malicious prosecution of plaintiffs in violation of the Fourth and Fourteenth Amendments.

74. The issuing magistrate relied upon the false statements in issuing the warrant, which abridged plaintiffs' rights to privacy.

75. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

NINTH CLAIM

Right of Action Under N.Y.C. Admin. Code § 8-803

76. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

77. The actions of defendants violated plaintiffs' rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

78. As such, immunity is not a defense to the violations of plaintiffs' rights and plaintiffs demand and are entitled to the relief described in Section 8-805.

79. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

TENTH CLAIM

Monell

80. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

81. Defendants are final policymakers and the violation of plaintiffs' rights took place pursuant to municipal policy and/or policy decisions that were ratified by defendants in their capacities as final policymakers.

82. As such, the City of New York is liable under § 1983 for the violation of plaintiffs' rights.

ELEVENTH CLAIM
Punitive Damages & Attorney's Fees

83. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

84. The actions of the defendants herein-above alleged, were malicious, willful, and grossly negligent.

85. Accordingly, plaintiffs are entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988

PRAYER FOR RELIEF

WHEREFORE, plaintiffs respectfully request judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;

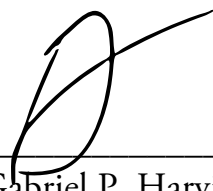
(c) Reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988, and with interest from the date of the incident;

(d) All relief authorized under N.Y.C. Administrative Code § 8-805; and

(e) Such other and further relief as this Court deems just and proper.

Dated: May 19, 2023
New York, New York

Yours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEK

By:  _____
Gabriel P. Harvis, Esq.
Baree N. Fett, Esq.
Attorneys for the Plaintiffs
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(212) 532-1116

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)


Gabriel P. Harvis, Esq.